

		at issue states that service of request for admission, set one, was served by mail on July 21, 2024 at 21231 Dove Circle, Huntington Beach, CA 92646 [the "Huntington Beach Address"]. [Id., Ex. 1 at p. 3]. Further, the address listed on the caption of Defendant Nicole Feryanitz's answer is the Huntington Beach Address. However, the motion, itself, was served on Nicole Feryanitz at 1166 Verrona Place, Pomona, CA 91766 (the "Pomona Address"). There is no notice of change of address by Nicole Feryanitz on file in this case. There is no explanation how and why Plaintiff obtained this Pomona Address. The court continued the hearing for Plaintiff to file an amended declaration explaining the discrepancy in the addresses and to establish that Defendant Feryanitz received the discovery at issue and the moving papers on the motion with sufficient notice. Since that hearing, Plaintiff has only filed a notice of the continued hearing, which Plaintiff served on Defendant Feryanitz at both the Huntington Beach Address and the Pomona Address. There is no further evidence that Defendant Feryanitz received proper notice of all of the moving papers on the motion with sufficient notice. Further, to the extent that Plaintiff has information that Defendant Feryanitz moved to the Pomona Address, the discovery being served at the Huntington Address may likely not have reached Feryanitz. For these reasons, the motion is denied without prejudice. Plaintiff to give notice.
2	Latif v. Jack W. Mitchell Construction, Inc.	Defendants Jack Mitchell Construction, Inc., Jack Mitchell Construction, Jack W. Mitchell and Lorie Mitchell's Motion to Strike Plaintiff Alaa Latif's First Amended Complaint is DENIED. <u>Authority</u> Code Civ. Proc. § 436, provides: "The court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper: (a) Strikeout any irrelevant, false, or improper matter inserted in any pleading. (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court." Defendants move to strike the following from the First Amended Complaint (FAC): 1. Page 10, lines 1-2, paragraph 64, in its entirety, which alleges: "Defendants acted willfully and maliciously, justifying punitive and exemplary damages under Civil Code §3294."; and 2. Page 12, line 12, paragraph 5 of the Prayer, which "seeks punitive and exemplary damages pursuant to Civil Code §3294." Paragraph 64 is under the 4th cause of action for fraudulent concealment in the FAC. According to Civ. Code § 3294 (c)(1), (2) and (3):